

CORRESPONDENCE · 27 MAR 1997

Registered letter McDonald's

TYPE	DATE	PARTIES
Correspondence	27 Mar 1997	From McDonald's France

SUMMARY SHEET

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Overview: registered letter with acknowledgement of receipt sent by Denis Hennequin, chairman and chief executive of McDonald's France, to Bernard Collorafi (SEBOL), in reply to a letter from his lawyer.

Key points

The letter responds point by point to the complaints made by Collorafi. McDonald's recalls that the lease-management agreement (location-gérance) confers no territorial exclusivity, relying on article 7 of the agreement signed in 1987, nor any right to a second restaurant. The selection of candidates and the allocation of sites are the sole responsibility of McDonald's. In support of its rejection of the alleged discrimination, the letter states that, of around 550 restaurants then open, only 12% are operated directly by the chain, that the national average is two restaurants per lessee-manager and that Collorafi will soon be operating three. McDonald's states that it never promises levels of turnover or profitability and recalls that new financial terms were granted for Antibes Nord.

Significance

Correspondence predating the litigation which sets out McDonald's position on exclusivity and location policy; it would be added to the debate on the performance of the agreements in good faith.

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Source: bernardcollorafi.org/en/documents/letter-mcdonalds-collorafi-no-territorial-exclusivity-1997/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.